

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Yu	Team: Squad #16	CCRB Case #: 201707753	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 09/08/2017 9:40 AM	Location of Incident: St. George Ferry Terminal	18 Mo. SOL 3/8/2019	Precinct: 120		
Date/Time CV Reported Tue, 09/19/2017 3:31 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 09/19/2017 3:31 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Joseph Padula	04804	933137	PBSI
2. POM William Palmer	10753	937240	PBSI

Officer(s)	Allegation	Investigator Recommendation
A . SGT Joseph Padula	Abuse: Sergeant Joseph Padula searched § 87(2)(b)	A . Unfounded
B . POM William Palmer	Abuse: Police Officer William Palmer frisked § 87(2)(b)	B . Substantiated
C . POM William Palmer	Abuse: Police Officer William Palmer searched § 87(2)(b)	C . Exonerated

Case Summary

On September 19, 2017, § 87(2)(b) filed this online complaint on behalf of her son, § 87(2)(b) via the CCRB's website. § 87(2)(b) did not witness the incident.

On September 8, 2017, at approximately 9:40 a.m., inside the St. George Staten Island Ferry Terminal, § 87(2)(b) was approached by Sgt. Joseph Padula and PO William Palmer of Patrol Borough Staten Island while he waited for the next ferry. Sgt. Joseph Padula lifted § 87(2)(b)'s shirt, revealing his right front pants pocket (**Allegation A: Abuse of Authority, unfounded**). PO William Palmer frisked § 87(2)(b)'s pants pocket (**Allegation B: Abuse of Authority, substantiated**) and searched his bag (**Allegation B: Abuse of Authority, exonerated**). § 87(2)(b) was not arrested or issued any summonses during the incident.

Video footage was obtained from the St. George Staten Island Ferry Terminal. Three out of four of the surveillance cameras depicted this incident (Board Review 03-06 and 21).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Joseph Padula searched § 87(2)(b) § 87(2)(b) alleged that as PO Palmer approached him and told him that they wanted to search his bag, Sgt. Padula subsequently approached him and lifted up the side of his shirt, which revealed the opening of § 87(2)(b)'s front right pants pocket which was covered by his shirt (Board Review 02). Upon § 87(2)(b) informing Sgt. Padula that he had his wallet in his pocket, Sgt. Padula let go of his shirt. § 87(2)(b) did not allege that Sgt. Padula lifted his shirt during his initial phone statement to the CCRB (Board Review 1).

In his CCRB testimony, Sgt. Padula denied asking what § 87(2)(b) had in his pocket and also denied lifting up § 87(2)(b)'s shirt (Board Review 08).

Video footage obtained from the St. George Staten Island Ferry Terminal shows that Sgt. Padula never lifted up § 87(2)(b)'s shirt or otherwise make physical contact with § 87(2)(b) (Board Review 21).



2018-03-01_16-25-12.mp4

Additionally, in one of the camera angles, the video depicts § 87(2)(b) lifting the bottom of his own shirt and then removing a black object from his right pants pocket during the interaction.

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be closed as **Unfounded**.

Allegation (B) Abuse of Authority: Police Officer William Palmer frisked § 87(2)(b)

It is undisputed that PO Palmer frisked § 87(2)(b)

In his CCRB interview, § 87(2)(b) stated that he had his wallet inside his right pants pocket during the incident (Board Review 02). During the interview, § 87(2)(b) removed his wallet to show the undersigned which was described by the undersigned as rectangular in shape, approximately 4 inches by 3 inches, and approximately 1 ½ inches thick. § 87(2)(b) did not

provide any details during his CCRB interview or his initial phone statement in regards to being frisked by PO Palmer (Board Review 01 and 02).



2018-03-01_16-32-38.mp4



2018-03-01_15-52-07.mp4

Video footage obtained from the Staten Island Ferry Terminal, specifically camera angle entitled “South Facing North” and “FXD Turnstiles Center,” shows PO Palmer briefly placing his hand over § 87(2)(b)'s front right pants pocket and then pulling his hand back. In a separate video clip, as referenced in the previous allegation, § 87(2)(b) later lifts up his shirt, removes a black object, and then shows it to show PO Palmer (Board Review 11). A bulge is not visible in any of the videos.

In their CCRB testimony, Sgt. Padula and PO Palmer both stated that they were conducting bag checks of every 25th person who enters the Ferry Terminal, which was also documented in their memo books (Board Review 07-08 and 19-20). PO Palmer was assigned as the “point man” which entails directing people to go to the bag check table (Board Review 07). PO Palmer explained that their duties are to primarily check bags and not people. PO Palmer approached § 87(2)(b) because he was the 25th person on the count. Both Sgt. Padula and PO Palmer stated that there were no additional reasons as to why they approached § 87(2)(b).

During his CCRB interview, PO Palmer initially denied running his hands over § 87(2)(b)'s pants pocket or frisking § 87(2)(b) (Board Review 07). However, after reviewing the video footage obtained from the Staten Island Ferry Terminal, PO Palmer admitted to tapping § 87(2)(b)'s leg “real quick” to see if there was anything hard or if there was a weapon. PO Palmer recalled there being something in his front of his right pocket, but he did not recall if he ever determined the bulge to be a weapon. Moreover, PO Palmer did not recall the shape of the bulge, but he stated that it was approximately six or seven inches in size. Additionally, PO Palmer did not recall what he believed was forming the bulge and he did not recall if he if asked § 87(2)(b) what was in his pocket.

Sgt. Padula denied seeing any bulges on § 87(2)(b) and did not suspect him of having a weapon during the incident (Board Review 08). Additionally, Sgt. Padula denied seeing PO Palmer frisk § 87(2)(b) or seeing him place his hand over § 87(2)(b)'s pocket. Sgt. Padula also did not hear PO Palmer ask § 87(2)(b) what was in his pocket. Even after reviewing the video footage obtained from the Staten Island Ferry Terminal, he did not have an independent recollection of seeing PO Palmer reaching towards § 87(2)(b)'s leg.

If an officer develops reasonable suspicion that a person is armed and dangerous, the officer may frisk the person for a deadly weapon or instrument, Patrol Guide Procedure 212-11 (Board Review 15).

A frisk is only permissible only if the police possess a particularized reasonable suspicion that the suspect is armed, and may be dangerous, People v. Gonzalez, 295 A.D.2d 183 (2002) (Board Review 16).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **substantiated**.

Allegation (C) Abuse of Authority: Police Officer William Palmer searched § 87(2)(b)

It is undisputed that PO Palmer searched § 87(2)(b)'s bag.

In his CCRB statement, § 87(2)(b) stated that when PO Palmer initially approached him, PO Palmer told him that they wanted to check his bag, and when he asked why, PO Palmer told him that it was random (Board Review 02). He was not provided with any other explanation. Later, Sgt. Padula told § 87(2)(b) that they were checking his bag because he was staring into space, because it appeared that something was wrong with him, and because he was wearing military boots. Also, Sgt. Padula told § 87(2)(b) that he did not know § 87(2)(b) he wanted to keep everyone safe, and that he did not feel comfortable letting him on the ferry without checking his bag. § 87(2)(b) eventually allowed PO Palmer to search his bag. § 87(2)(b)'s initial phone statement was generally consistent with his CCRB testimony (Board Review 01).

As stated above, PO Palmer and Sgt. Padula were conducting bag checks at the ferry terminal and PO Palmer was responsible for picking the 25th person to check their bags. PO Palmer explained that the person can refuse to have their bags checked, but then the person would not be allowed to get on the ferry terminal (Board Review 07). PO Palmer stated that there is a sign posted at the ferry terminal which states, "In order to proceed you must have your bag checked," and "If you refuse to have your bag checked then you cannot go any further." PO Palmer stated that he did not ever verbally inform § 87(2)(b) that if he refused he could just leave. PO Palmer stated that he approached § 87(2)(b) because he was the 25th person on the count. Both Sgt. Padula and PO Palmer stated that there were no additional reasons as to why § 87(2)(b)'s bag was searched. § 87(2)(b) initially refused to have his bag checked, but after PO Palmer repeated that he was the 25th person and § 87(2)(b) eventually walked over. PO Palmer did not have an independent recollection of searching § 87(2)(b)'s bag.

In his CCRB statement, Sgt. Padula stated that there are multiple signs posted throughout the Ferry Terminal that are issued by the Ferry Terminal in regards to bag searches and Sgt. Padula had posted a separate sign stating that bags are subject to a search (Board Review 08). Sgt. Padula stated that if a person refuses to have their bag searched then they would not be allowed to board the ferry. Sgt. Padula denied instructing PO Palmer to approach § 87(2)(b) and stated that PO Palmer independently determined § 87(2)(b) to be the 25th person.



2018-03-01_16-19-37.mp4

In the video files obtained from the Staten Island Ferry Terminal it shows PO Palmer approaching § 87(2)(b) and then PO Palmer directing § 87(2)(b) to the table (Board Review 21). At the table, PO Palmer briefly looked inside § 87(2)(b)'s bag and returned it to § 87(2)(b).

According to the photo of a notice sign displayed at the Ferry Terminal, taken by § 87(2)(b) of Department of Transportation, the facility is operated pursuant to the rules and regulations of the United States Coast Guard (Board Review 17). In accordance with Coast Guard Rules and Regulations: "Your entry to this facility is conditionally approved upon your consent to

the screening or inspection. Failure to consent or submit to screening or inspection will result in the immediate denial of access to this facility.

§ 87(2)(g)

it is recommended **Allegation C** be closed as **exonerated**.

Civilian and Officer CCRB Histories

- This is § 87(2)(b) and § 87(2)(b)'s first CCRB complaint (Board Review 13 and 14).
- PO Palmer has been a member of the NYPD for 13 years and has had four prior CCRB allegations pleaded against him in two cases; none of which has been substantiated.
 - PO Palmer has an open CCRB complaint in case number 201703758.
- Sgt. Padula has been a member of the NYPD for 14 years and has had 14 prior CCRB allegations pleaded against him in six prior CCRB complaints.
 - In case number 201202811, allegations of a vehicle search, frisk, and search was substantiated by the Board. The NYPD dismissed the case during the Administrative trial, but Sgt. Padula received a penalty of a forfeiture of three vacation days.
 - Sgt. Padula has an open CCRB complaint in case number 201703758.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation during his CCRB interview.
- Neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim in regards to this incident (Board Review 22)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date